12. Doctrine of Harmonious Construction

13. Doctrine of Liberal Interpretation

9. Other Powers

Besides the above, the Supreme Court has numerous other powers:

(a) It decides the disputes regarding the election of the President and the vice-President. In this regard, it has the original, exclusive and final authority.

(b) It enquires into the conduct and behaviour of the chairman and members of the UPSC or SPSC or JSPSC on a reference made by the President. If it finds them guilty of misbehaviour, it can recommend to the President for their removal. The advice tendered by the Supreme Court in this regard is binding on the President.

(c) It is authorised to withdraw the cases pending before the high courts and dispose them by itself. It can also transfer a case or appeal pending before one high court to another high court.

(d) Its law is binding on all courts in India. Its decree or order is enforceable throughout the country. All authorities (civil and judicial) in the country should act in aid of the Supreme Court.

(e) It has power of judicial superintendence and control over all the courts and tribunals functioning in the entire territory of the country.

The Supreme Court's jurisdiction and powers with respect to matters in the Union list can be enlarged by the Parliament. Further, its jurisdiction and powers with respect to other matters can be enlarged by a special agreement of the Centre and the states.

INDIAN AND AMERICAN SUPREME COURTS COMPARED

There are differences in the jurisdiction and powers of the Supreme Court of India and that of the Supreme Court of USA. These are summarised in Table 26.1.

Table 26.1 Comparing Indian and American Supreme Courts

Indian Supreme Court	American Supreme Court
1. Its original jurisdiction is confined to federal cases.	1. Its original jurisdiction covers not only federal cases but also cases relating to naval forces, maritime activities, ambassadors, etc.
2. Its appellate jurisdiction covers constitutional, civil and criminal cases.	2. Its appellate jurisdiction is confined to constitutional cases only.